



CIBC Mutual Funds

Application Form for Brokers and Dealers

This Form contains:

Non-Registered Account

Registered Account

- Individual RSP
- Spousal RSP
- Locked-In RSP/LIRA

Retirement Income Fund (RIF) Account



Mutual Fund Account No.	Date D D M M Y Y Y Y
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Application Form

CIBC Mutual Funds

1. Account/Plan Information (FOR REGISTERED PLANS, "SPOUSE" IS DEFINED IN THE DECLARATION OF TRUST)☐ New Account ☐ Existing

Non-Registered ☒ Individual ☐ Joint ☐ Trust/Estate ☐ Corporate ☐ Association ☐ Other _____
RSP ☐ Individual ☐ Spousal ☐ Locked-In RSP/LIRA (attach Locked-In Amending Agreement; please note jurisdiction); _____
RIF ☐ Individual ☐ Spousal

2. Customer/Annuitant Information (ALL ACCOUNTS)

Corporation Name (if applicable, for non-registered accounts only)				Business Number (if applicable)					
Contact Name for Corporation		☐ Mr. ☐ Mrs. ☐ Ms. ☐ Miss ☐ Dr.	Surname		First Name & Middle Name(s)				
Address									
City		Province		Country Canada		Postal Code		Date of Birth D D M M Y Y Y Y	
Social Insurance Number		Home Phone Number ()		Business Phone Number/Ext. ()		Language Preference ☐ English ☐ French			

3. Joint Applicant Information (NON-REGISTERED ACCOUNTS ONLY: if more than one joint applicant, complete Section 3 using a new Form 9562)

☐ Mr. ☐ Mrs. ☐ Ms. ☐ Miss ☐ Dr.		Surname		First Name & Middle Name(s)					
Address									
City		Province		Country Canada		Postal Code		Date of Birth D D M M Y Y Y Y	
Social Insurance Number		Home Phone Number ()		Business Phone Number/Ext. ()		Language Preference ☐ English ☐ French			

4. Informal Trust Account Information (NON-REGISTERED ACCOUNTS ONLY)

Complete this section only for Informal Trust accounts: i.e., Youth Portfolio.

Surname				Date of Birth D D M M Y Y Y Y			
First Name & Middle Name(s)				Social Insurance Number			

5. Spousal Information (SPOUSAL RSPs/RIFs ONLY)☐ Check if transfer-in and complete Section 7: Investment Instructions

Complete this section if the contributions to this RSP are being made by your Spouse or if funds are being transferred from another Spousal RSP/RIF. All income tax receipts for RSP contributions will be issued in the Spouse's name.

Surname of Annuitant's Spouse				Date of Birth D D M M Y Y Y Y			
First Name & Middle Name(s)				Social Insurance Number			

6. Dealer Appointment

Dealer Name			Dealer Number		
Representative Name			Representative Number		
Address					
City		Province		Postal Code	
Dealer Account Number		Business Phone Number/Ext. ()		Business Fax Number ()	

I/We direct CIBC to implement the instructions received from the Dealer and acknowledge that CIBC has no obligation or responsibility to control, supervise, or manage the activities of the Dealer. I/We agree that CIBC has no obligation or responsibility for the investment management of the assets held in the Account/Plan or for investment decisions, except for carrying out the investment instructions received by the Dealer. I/We authorize CIBC to provide any such information and documents to the Dealer as the Dealer reasonably requests relating to this Account/Plan.

X

Customer/Annuitant Signature

Date

X

Authorized Signature/Appointment Accepted by Dealer

Date

Sharing Information about my Account/Plan with my Dealer

I/We consent and agree that CIBC, as Manager of the Funds and as agent for the Trustee, must share information about my Account/Plan with my Dealer. I/We also consent and agree that my Dealer must share information about my Account/Plan with CIBC. I/We may revoke this consent by written notice provided to CIBC at 161 Bay Street, 4th Floor, Toronto, Ontario M5J 2S8. If I/We revoke this consent, my Account/Plan cannot be serviced, and CIBC Mutual Funds cannot be offered to me.

Customer/Annuitant Signature X _____ Date _____

7. Investment Instructions (ALL ACCOUNTS)

For Spousal RSPs, the source of funds is from the Contributing Spouse's bank account. The Contributing Spouse must sign here to authorize contributions to be drawn from the bank account in accordance with the following instructions:

Cdn \$ ☐ A. Lump Sum Investment/Contribution ☐ Cheque

☐ B. Regular Investment Plan	Institution No.	Transit No.	Account No.	Amount \$
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US \$ ☐ C. Lump Sum Investment/Contribution ☐ Cheque

☐ D. Regular Investment Plan	Institution No.	Transit No.	Account No.	Amount \$
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CIBC Mutual Funds purchased with U.S. dollars cannot be held in registered accounts, except CIBC U.S. Dollar Money Market Fund.

Copy to: CIBC, Dealer, and ClientX
Contributing Spouse's Signature
If more than one signature is required to draw on the account*:X
Joint Bank Accountholder's Signature
If more than one signature is required to draw on the account*:X
Joint Bank Accountholder's Signature

7. Investment Instructions (ALL ACCOUNTS) continued...

For Regular Investment Plans, please attach a cheque marked "VOID".

To the Financial Institution identified above; you are hereby authorized to debit my/our account as indicated above.

Where your application is for pre-authorized purchase ("pre-authorized debit" or "PAD"), you hereby authorize and request CIBC to draw on your account at the branch named above whether the account continues to be maintained at the named branch or is transferred to another branch of the financial institution. You hereby waive any pre-notification requirements under the Canadian Payments Association Rules to receive a written pre-notification prior to each pre-authorized debit as set out in the Rules.

You may dispute a withdrawal (or "debit") made by CIBC from your deposit account if the withdrawal was not in accordance with your instructions or was made after you revoked this authorization or after CIBC cancelled the withdrawals. If the withdrawal was made less than 90 days ago, you may complete a Declaration Form at the financial institution holding your deposit account; after 90 days you must contact CIBC.

You have certain recourse rights if any debit does not comply with this agreement. For example, you have the right to receive reimbursement for any debit that is not authorized or is not consistent with this PAD agreement. To obtain more information on your recourse rights, you may contact your financial institution or visit www.cdnpay.ca.

Delivery of this application form to CIBC constitutes delivery by you, the Customer/Annuitant of this Account/Plan, to your financial institution. You understand that your financial institution is not required to verify that any withdrawals by CIBC are in accordance with your instructions. You warrant that all persons whose signatures are required to sign on the account have signed above. The withdrawal instructions you have provided will take effect, at the earliest, 10 days after receipt by CIBC.

You agree that you will be fully liable for any charges incurred if withdrawals cannot be made due to insufficient funds in your account or for any other reasons for which you may be held accountable. You agree that no contribution will be made to your Account/Plan for that period.

You agree to notify CIBC promptly in writing if there is any change in your account information. You may cancel this authorization at any time upon written notice.

*If the Joint Bank Accountholder is different from the Customer/Annuitant, each Customer/Annuitant agrees and authorizes that a contribution from such other Joint Bank Accountholder's account is made on behalf of all Customers/Annuitants and this constitutes the Customer/Annuitant's written consent to such contribution.

For Registered Plans

☐ **E. Transfer from RSP/RRIF**
(complete and attach a copy of Form T2033 or equivalent)

☐ **F. Transfer on Marriage or Relationship Breakdown**
(complete and attach a copy of Form T2220)

☐ **G. Retiring Allowance**
(complete and attach a copy of Form TD2)

☐ **H. Transfer from Registered Pension Plan or Deferred Profit Sharing Plan**
(complete and attach a copy of Form T2151 and for pension plan transfers also attach Locked-In Amending Agreement)

☐ **I. Transfer of RRSP Annuity or RRIF Excess Amount**
(complete and attach a copy of Form T2030)

8. Choose Your Investment

(New Accounts: Non-Registered and RSP)

		Regular Investment Plan						Lump Sum Investment/Contribution
Fund/ Portfolio No.	CIBC Fund/Portfolio Name	Amount	Start Date	1) Specific date(s) of month account debited (max. 4)	2) Weekly/Bi-weekly Weekly Bi-weekly Day (M – F)			Amount
		\$	D D M M Y Y Y Y	DD DD DD DD	☐	☐	M – F	\$
			D D M M Y Y Y Y	DD DD DD DD	☐	☐	M – F	
			D D M M Y Y Y Y	DD DD DD DD	☐	☐	M – F	
			D D M M Y Y Y Y	DD DD DD DD	☐	☐	M – F	
			D D M M Y Y Y Y	DD DD DD DD	☐	☐	M – F	

9. Payment Method (RIFs ONLY)

A. Frequency ☐ Monthly ☐ Quarterly ☐ Semi-annually ☐ Annually

B. I elect the minimum amount be based on:

☐ My age

☐ The age of my Spouse whose birth date is:

D D M M Y Y Y Y Spouse's Name:

C. Amount of each payment

\$

OR ☐ Minimum Amount

If the amount selected is less than the **Minimum Amount**, the **Minimum Amount** will be paid.

D. Payments to commence

☒ In the calendar year following the year of commencement of the Plan.

OR

☒ In the year of commencement of the Plan in the month of (Not applicable if **Minimum Amount** is selected.)

E. Forward payments to this account

Institution No.

Transit No.

Account No.

10. Beneficiary Designation - Optional (REGISTERED ACCOUNTS ONLY) (Designations cannot be made by Quebec residents or, for RIFs only, by Yukon residents)

Caution (required by law for Manitoba only): In Manitoba, your designation of a beneficiary by means of a designation form will not be revoked or changed automatically by any future marriage or divorce. Should you wish to change your beneficiary in the event of a future marriage or divorce, you will have to do so by means of a new designation.

For All Plans

☐ You name the following person(s) or estate to receive the proceeds of your Plan as a LUMP SUM after your death:

Name of Beneficiary (1)

Relationship to Account/Planholder

☐ Spouse **or** ☐ Other (Specify)

Name of Beneficiary (2)

Relationship to Account/Planholder

☐ Spouse **or** ☐ Other (Specify)

OR ☐ Estate

For RIFs only

OR ☐ You name _____, your Spouse, as the successor annuitant to receive the periodic payments under the Plan, if he or she survives me.

For All Plans

You revoke any prior designation of beneficiary/successor annuitant you may have made for your Plan. To receive any Plan proceeds after your death, any person you name must survive you. If you name more than one person, the proceeds will be divided equally among only those beneficiaries who survive you. If only one beneficiary survives you, he/she will receive the entire proceeds. If no beneficiary/successor annuitant survives you, the Plan proceeds will be paid to your estate. You are aware that the Declaration of Trust states that before CIBC Trust Corporation pays anyone, it may require evidence of your death and other documents to establish that you did not later revoke this designation in your Will or otherwise.

Please note however that for Locked-In Retirement Accounts (LIRA)/Locked-In RSPs, your surviving "spouse" (as defined by the applicable legislation) may be entitled in priority to a spousal death benefit. Please see Locked-In Amending Agreement for additional information.

11. Sharing Information**Collection, Use, and Disclosure of Information**

CIBC may collect information during the course of your relationship with CIBC from credit bureaus, other financial institutions, and references you provide to CIBC. CIBC may disclose information to credit bureaus, other financial institutions, mutual fund companies and other issuers, law enforcement agencies, regulators, and self-regulatory organizations (the word "Information" means financial and financially-related information about an individual, including information to identify or qualify the individual for products and services or information that CIBC needs for regulatory requirements). CIBC may share Information about you within the CIBC group for legal and regulatory purposes, to manage credit risk and other business risks, and to ensure the CIBC group has correct and up to date Information about you, including current address and date of birth. Note: The CIBC group includes CIBC and its subsidiaries that currently offer deposits, loans, mutual funds, securities trading, mortgages, trust, and insurance services. CIBC may use Information to identify you, protect you from fraud and error, understand your needs and eligibility for services, recommend particular products and services to meet your needs, provide ongoing service, facilitate tax and other reporting by mutual funds and other issuers, and to comply with legal, regulatory, and self-regulatory requirements. CIBC may also collect, use, and disclose Information for any purpose required or permitted by law. This is explained in the CIBC privacy brochure, "Your Privacy Is Protected", available at any branch or www.cibc.com, which describes how the CIBC group collects, uses, discloses, and retains Information about you and the products and services you use.

You consent to the collection, use, and disclosure of your social insurance number for the purposes of administering the Account/Plan.

Copy to: CIBC, Dealer, and Client

12. Authorization (ALL ACCOUNTS)

I/We, the undersigned, hereby request that an Account/Plan be opened with CIBC. I/We understand that, notwithstanding the acceptance of this application, this subscription and all future subscriptions are subject to the acceptance by the respective Mutual Fund. I/We confirm that the information supplied by me/us for this application is accurate and complete. If I/We provided information on this application about my Spouse or another person, I/We represent to CIBC that my Spouse or that person has consented to its disclosure for the purpose of administering this Account/Plan.

Commissions, trailing commissions, management fees and expenses all may be associated with mutual fund investments. Mutual Funds are not covered by the Canada Deposit Insurance Corporation or by any other government deposit insurer, nor are they guaranteed by CIBC. There can be no assurances that Savings Funds will be able to maintain their net asset value per security at a constant amount or that the full amount of your investment will be returned to you. The values of Income Funds and Growth funds change frequently. Past performance may not be repeated.

For Registered Plans Only:

I apply for membership in the plan described in Section 1 (the "Plan"). I agree to be bound by the applicable Declaration of Trust that I have received, as amended or replaced from time to time. I request that CIBC Trust Corporation apply for registration of my CIBC Mutual Funds RSP or RIF in accordance with the *Income Tax Act* (Canada) and any applicable provincial income tax legislation.

I will be solely responsible for any tax consequences resulting from contributions and withdrawals; CIBC and CIBC Trust Corporation have no responsibility for such matters. I agree to indemnify CIBC and CIBC Trust Corporation and save them harmless from any expenses they may incur in accordance with the RSP and RIF Declaration of Trust.

Quebec Residents Only – I/We acknowledge that this application and the Declaration of Trust were provided at my/our request in the English language only. *Je reconnais/nous reconnaissons que la présente demande et la Déclaration de fiducie m'ont été remises uniquement en anglais, à ma demande.*

X

Applicant/Annuitant's Signature

Date

X

Joint Applicant's Signature (if applicable)

(For Registered Plans only)
Accepted by CIBC as Agent for the Trustee

Authorized Signature

Retirement Savings Plan Declaration of Trust

1. Establishment of Plan

CIBC Trust Corporation, a trust company incorporated under the laws of Canada (the "Trustee"), agrees to act as trustee of the CIBC Mutual Funds Retirement Savings Plan (the "Plan") in accordance with the following terms:

2. Definitions

In this Declaration of Trust:

Act means the Income Tax Act (Canada), as amended from time to time.

Agent means CIBC Securities Inc. and/or CIBC.

CIBC means Canadian Imperial Bank of Commerce.

Contributions means contributions of cash or investments into the Plan.

Declaration means this Mutual Fund Retirement Savings Plan Declaration of Trust.

Maturity Date means the date set in accordance with section 9 below or as set out in the Act.

Personal Representative(s) means an executor, an administrator with or without a will annexed, or an estate trustee.

Plan Proceeds means the amount received on the disposition of all of the Plan investments at their market value (determined on a basis selected by Us in Our absolute discretion), less any applicable taxes and any fees, costs and/or expenses referred to in section 17 below.

Retirement Income has the meaning given to that term in the Act.

RRIF means a registered retirement income fund, as defined in the Act.

RRSP means a registered retirement savings plan, as defined in the Act.

Spouse includes a "Common-Law Partner" as defined in the Act and may include a "Civil Union Partner" as defined under Quebec law; however, "spouse" does not include any person who is not recognized as a Spouse or Common-Law Partner for the purposes of any provision of the Act respecting RRSPs.

Tax Laws means the Act and, if You reside in Canada, any applicable tax legislation of Your province or territory of residence as recorded in Your application.

We, Us and **Our** mean the Trustee and/or the Agent, depending on the context.

You and Your mean the annuitant as defined under subsection 146(1) of the Act and referred to as the customer on the Plan application.

3. Registration

We will apply for registration of the Plan in accordance with the Tax Laws. The purpose of the Plan is to provide You with Retirement Income in accordance with the Act.

4. Your Account

We will maintain an account of all cash and investments held for You and will send You an account statement at least once a year. We will make such returns and file such reports as the Act may require.

5. Contributions

You (or Your Spouse, if You declared on the Plan Application that all Contributions would be made by Your Spouse) may make such Contributions as the Tax Laws permit. It is Your responsibility to ensure that all Contributions are permitted by the Tax Laws and do not result in any taxes or penalties being imposed. The Trustee will hold in trust all property held in the Plan. No Contributions may be made after the Maturity Date; in addition, if the Maturity Date is December 31 of the year in which You reach age 71 (or such other age as may be set under the Tax Laws from time to time as the date by which this Plan must mature), We may decline to accept any Contributions during the 90 day period prior to the Maturity Date, in Our absolute discretion. We may establish a minimum Contribution amount or change it at any time.

6. Investments

You may invest cash contributions, earnings on Plan investments and net proceeds on the sale of Plan investments in units of such CIBC Mutual Funds (the "Mutual Funds") and/or in such other investment options as the Agent may permit from time to time for the Plan. Cash contributed or transferred into the Plan will be invested in the CIBC Money Market Fund in the absence of clear and complete investment instructions from You until such time as the Agent receives clear and complete instructions from You. Income earned by a Mutual Fund will be automatically reinvested without charge in additional units of the same Mutual Fund unless You direct otherwise. Despite anything else in this Declaration, We may retain in cash any portion of any cash contributed or transferred-in as We may deem advisable in Our discretion for the payment of any fees referred to in section 17 below.

You may appoint an agent to give Us investment instructions by providing Us with a duly executed power of attorney in a form acceptable to Us. You release Us from any claim or liability for acting on Your agent's instructions.

7. Cash Withdrawals

You may ask Us to pay You all or part of the Plan property in cash. Such request must be made in writing and received by Us before Your Retirement Income starts. If You request a partial withdrawal only, We will sell the specific Plan investments You instruct Us to sell for this purpose. However, if We do not receive Your instructions as to which Plan investments are to be sold or We determine (in Our absolute discretion) that Your instructions are unclear in this respect, We will not process Your partial withdrawal request until We receive clear instructions from you; We will not be liable for any losses caused by such delay, including but not limited to any decrease in investment value. We will withhold any income or other taxes required to be withheld in respect of any withdrawal and also deduct from the proceeds any fees, costs and/or expenses referred to in section 17 below that may be payable, and pay You the balance.

8. Income Tax Receipts

On or before March 31 in each year, We will send You or to Your Spouse (depending on who makes Plan Contributions) a receipt for income tax purposes for Contributions made to the Plan during the previous year and the first 60 days of the current year. You or Your Spouse, as the case may be, are(s) solely responsible for determining the amount of Contributions which may be claimed as a deduction in the contributor's personal income tax return.

9. Purchase of Retirement Income or Transfer to a RRIF

You may select the Plan's Maturity Date, if You wish. The Maturity Date must be before December 31 of the year in which You reach age 71 (or such other age as may be set

under the Tax Laws from time to time as the date by which this Plan must mature) and must satisfy any other requirements of the Tax Laws. If You wish to select the Maturity Date, We must receive from You, at least 90 days before Your desired Maturity Date, instructions in writing specifying the desired Maturity Date and advising Us to:

- sell all of the Plan investments and apply the Plan Proceeds to purchase a Retirement Income;
- in accordance with the Tax Laws, amend the Plan to permit the transfer of the Plan Proceeds or (if permitted by the RRIF) Plan investments to a RRIF and direct Us to transfer same to the carrier of the RRIF You select; or
- such combination of (a) and (b) that You specify in Your instructions.

If We do not receive such written instructions from You at least 90 days before December 31 of the year in which You reach age 71 (or such other age as may be required under the Tax Laws) then, before the end of that year and without prior notice to you, We will establish a CIBC Mutual Fund RRIF for You and transfer the Plan investments, in kind, and any other Plan holdings into that RRIF or alternatively, if We should choose to do so in Our absolute discretion, We will sell all of the Plan investments and apply the Plan Proceeds to provide for a CIBC or CIBC affiliate RRIF for You of such type as We determine, in Our absolute discretion. If We establish a RRIF or arrange for a RRIF to be established for You, You will be deemed:

- to have elected to use Your age to determine the minimum amount payable under the RRIF each year, according to the Applicable Legislation;
- not to have designated Your Spouse as successor annuitant of the RRIF upon Your death;
- not to have designated any beneficiary on the RRIF; and
- if applicable to the RRIF established for You, to have provided CIBC Securities Inc. with the authority to rebalance the RRIF account using the same tactical rebalancing that applied to You just prior to the conversion of the Plan into a RRIF.

For this purpose, You hereby appoint the Trustee as Your attorney in fact to execute all documents and make any elections as are necessary to enable the above. We, the trustee or other issuer of Your RRIF, and any agent(s) of the RRIF's trustee will have absolutely no liability to You in respect of the establishment and operation of Your RRIF. Your RRIF will be administered in accordance with the Tax Laws.

If the value of this Plan is insufficient to meet the minimum requirements for establishing a CIBC Mutual Fund RRIF, a CIBC RRIF or other CIBC affiliate RRIF for You, as determined by the issuer or agent(s) of that RRIF in its absolute discretion, without prior notice to You We will collapse Your Plan on or before December 31 of the calendar year in which You reach age 71 (or such other age as may be required under the Tax Laws). This means that We will sell all Plan investments and issue You a cheque for the Plan Proceeds.

If You direct Us to sell Plan investments and use the proceeds (net of any fees, costs and/or expenses referred to in section 17) to purchase a Retirement Income, Your Retirement Income must have these characteristics:

- it cannot be capable of assignment either in whole or in part;
- it must be capable of commutation in full or in part;
- the total of the periodic payments in a year after the death of the first annuitant under the Retirement Income cannot exceed the total of the payments in a year before that annuitant's death;
- it must require commutation if it becomes payable to a person other than an annuitant under this Plan. For purposes of this Plan, "annuitant" means You or Your Spouse who becomes entitled to receive benefits out of or under the Plan after the Maturity Date and in consequence of Your death;
- it must not provide for a payment to the annuitant except by way of equal annual or more frequent periodic payments until such time as there is a payment in full or partial commutation of the Retirement Income and, where such commutation is partial, equal annual or more frequent periodic payments afterwards; and
- must otherwise comply with the Tax Laws.

10. Designation of Beneficiary

If effective in Your province or territory of residence, You may designate one or more beneficiaries in accordance with this section to receive the Plan if You die before acquiring a Retirement Income. To be valid, a beneficiary designation may only be made, changed or revoked by written instrument in form reasonably acceptable to Us (including, without limitation, by a Will or codicil), which instrument must comply with applicable provincial or territorial law; in addition, Your designation must adequately identify the Plan, be signed by You, and received by Us at the address specified in section 15 before any payment is made under this section 10. If We receive more than one such instrument, We will pay in accordance with the instrument with the most recent execution date, if the requirements set out in section 11 are met. An instrument may be effective for the purpose of this section even though, as a Will or codicil, it may be invalid or revoked.

If You designate only one beneficiary, that person will be entitled to the entire Plan, as long as that person survives You and neither disclaims nor is deemed by any law to have disclaimed the right to receive a payment from the Plan; otherwise, the Plan will be distributed to Your estate. If You designate more than one beneficiary, the Plan will be divided equally between or among (as applicable) those of Your designated beneficiaries who survive You and who neither disclaim nor are deemed by any law to have disclaimed the right to receive a payment from the Plan. If You designate more than one beneficiary but only one of the designated beneficiaries survives You and neither disclaims nor is deemed by any law to have disclaimed the right to receive a payment from the Plan, that person will receive the entire Plan. If no beneficiary is designated in accordance with this section, or if Your sole designated beneficiary or all of Your designated beneficiaries (as applicable) do(es) not survive You or disclaim(s) or is(are) deemed by any law to have disclaimed the right to receive a payment from the Plan, the Plan Proceeds will be paid to Your Personal Representative.

11. Distribution after Death

If You should die before acquiring a Retirement Income, We will hold the Plan investments until We receive all of the following:

- evidence satisfactory to Us of Your death.
- evidence satisfactory to Us as to who is (are) entitled in accordance with section 10 to

receive the Plan. This evidence may include letters probate or similar documents indicating whether a beneficiary designation that We received in accordance with section 10 was not subsequently amended or revoked by Will or otherwise.

- c) such releases and other documents as We may reasonably require.
- d) a written instruction from the person or (if more than one) from all persons entitled to the Plan to dispose of the Plan investments and distribute the proceeds in cash, or (if We permit) to distribute the Plan investments in kind or to distribute a mixture of both.

If more than one person is entitled to the Plan in accordance with section 10 but all such persons do not jointly instruct Us, within a reasonable time period after Your death (as assessed by Us in Our absolute discretion), whether Plan investments will be disposed of or distributed in kind and if the latter, which Plan investments will be sold and which will be distributed in kind and to whom, We will be entitled to exercise Our discretion to dispose of all, none, or only some of the Plan investments without prior notice to You and to divide the resultant proceeds and/or any remaining investments, as applicable, between/among the entitled persons as We see fit. However, on the distribution date, the value of the investments and/or proceeds (as applicable) distributed to each person must be equal.

Any taxes required by the Act to be withheld and any fees, costs and/or expenses referred to in section 17 will be deducted from any distribution under this section. In addition, We may delay the disposition of Plan investments and/or the distribution of Plan investments and/or proceeds for such further period as We may deem appropriate in Our absolute discretion, if We believe that the delay is necessary or advisable for the proper distribution of the Plan; We will not be liable for any loss caused by such delay.

If there is a dispute about who is legally authorized to apply for and accept receipt of Plan proceeds and/or investments after Your death, We are entitled to apply to the courts for directions or to dispose of all Plan investments and pay the Plan Proceeds into court (whichever We choose in Our absolute discretion). In either case, We will also be entitled to fully recover any legal costs incurred in this regard in accordance with section 17 below and We will not be liable for any loss incurred prior to or during the court proceedings or because of the disposition of any Plan investments prior to payment into court.

12. Delegation of Duties

Despite any other provisions in this Declaration, the Trustee acknowledges that it is vested with the ultimate responsibility for the administration of the Plan. Without detracting in any way from this responsibility, You acknowledge that the Trustee may delegate to others the performance of clerical, administrative, custodian and other duties relating to the Plan's operation. You authorize the Trustee to delegate to the Agent the performance of any of these duties.

You acknowledge that the Agents pay the Trustee an ongoing fee for acting as trustee and that the Trustee and the Agents are entitled to reimburse themselves from the Plan assets in accordance with section 17 for expenses and costs incurred in administering this Plan, including (without limitation), in the case of the Agents, in performing delegated duties.

13. Retirement of Trustee

The Trustee may retire as trustee of the Plan by sending You at least 90 days' prior notice, as long as a replacement Trustee has been appointed in writing by the Agent and the replacement Trustee has accepted the appointment. The Trustee will transfer all Plan books, records, investments and other assets to the replacement Trustee immediately upon retirement.

14. Transfers to other Plans

You may instruct Us to transfer to one or more RRSPs or to a registered pension plan for Your benefit the cash proceeds of all or part of the Plan investments or (if the recipient plan permits same) all or part of the Plan investments. A transfer must be done in accordance with the Act. In addition, You must give Us at least 90 days prior written notice of the transfer (or such shorter time period as We might wish to accept in Our absolute discretion) and all other documents as We may reasonably request. If You request a partial transfer (whether it is to be cash or in kind) but We do not receive Your instructions as to which Plan investments are to be sold or transferred or We are of the view (in Our absolute discretion) that You have not clearly specified which investments are to be sold or transferred for this purpose, We will not process the transfer until We receive clear instructions in this regard; We will not be liable for any losses caused by such delay in processing, including but not limited to any change in investment value. No transfer will be made until all fees, costs and/or expenses referred to in section 17 below have been paid and any taxes required to be withheld have been deducted.

15. Notices

- a) Notice by You: Any notice or instructions You give Us must be personally delivered or mailed (postage prepaid) to the Trustee c/o CIBC Securities Inc. at P.O. Box 51, Commerce Court Postal Station, Toronto, Ontario M5L 1A2, or at such other address as We may from time to time specify in writing. You may give a notice or instruction by fax only if, before the fax is sent, We have stated or agreed that it may be given by fax. Any notice or instruction will be considered to have been given to Us on the day that it is actually delivered to or received by Us.
- b) Notice to You: Any notice, statement, receipt or advice given by or on behalf of Us to You or Your Spouse or to any other person entitled to notice under the Plan will be given (postage prepaid) to You or Your Spouse or such other person at the address recorded in Our books with respect to the Plan. If it is mailed, it will be considered to have been received five days after mailing.
- c) Notice to Trustee by Third Parties: While any legal notice or document issued by a third party in respect of the Plan will be effectively served on Us if served at the address in section 15(a), service may be accepted, at Our discretion, at any location of the Trustee, the Agent or any affiliate of CIBC. If We or any CIBC affiliate incurs any expenses in responding to any third party legal notice or document, We may charge those expenses to the Plan. We may, but are not required to, notify You of the receipt of any legal notice or document before We comply with it. We or any agent may serve You with any legal notice or document by mailing it to You by ordinary mail in accordance with section 15(b) above. Any payment made by Us or any agent to a third party claimant under any legal process is a discharge of the Trustee's trust obligations and of the Agent's obligations with respect to the Mutual Funds to the extent of the amount paid, as long as the payment is made in good faith.

16. Amendment to Declaration of Trust

We may amend this Declaration at Our discretion from time to time by giving You written notice, which may be set out on or enclosed with a statement or other written communication sent to You or may be sent as a separate notice. The amendment(s) will be effective on the date set out in the notice; if no date is specified, the amendment(s) will be effective immediately. No amendment may result in the Plan not being acceptable as an RRSP under the Tax Laws.

17. Fees, Costs and Expenses

- a) We are entitled to receive and may charge against Your Plan account such fees as may be established from time to time for the Plan. If a Plan fee is increased or a new Plan fee is introduced, the Agent will mail You notice of the change at least 60 days prior to the effective date of the change.
- b) We are entitled to receive and may charge against the Plan account any costs and out-of-pocket expenses incurred by Us including (without limitation) any taxes or penalties payable in respect of services provided by Us in connection with the Plan. Without limiting the generality of the previous sentence, We are specifically entitled to recover any legal fees and expenses incurred by Us in connection with a dispute arising as a result of any beneficiary designation made by You on a Plan document or otherwise or arising out of a third party demand made upon Your Plan. All such amounts will be charged against and deducted from the Plan, unless You make other arrangements with Us.
- c) If any cash balance in the Plan account is insufficient to cover such fees, costs and expenses, then We may without notice to You dispose of such Plan investment(s) as We in Our absolute discretion determine and apply the proceeds against such fees, costs and expenses; We are not responsible for any loss arising from same.

18. Over Contributions

If You or Your Spouse (depending on who makes Plan Contributions) directs Us in writing to do so, We will refund to the contributor, out of the Plan assets, an amount to reduce the tax that would otherwise be payable under Part X.1 of the Act. You must instruct Us as to which Plan investments We are to sell. If You do not do so, We will select the Plan investments to be sold in Our absolute discretion, and We are not responsible for any loss arising from that sale. We are not responsible to determine the amount of the refund.

19. No Collateral Benefit

No benefit or advantage that is conditional in any way on the existence of this Plan may be extended to You or to a person with whom You do not deal at arm's length (other than those benefits which may be permitted from time to time under the Act).

20. No Pledge

No property held in the Plan may be pledged or assigned or in any way alienated as security for a loan, or for any purpose other than to provide You a Retirement Income in accordance with the terms of the Plan.

21. Voting Rights

You are entitled to exercise voting rights attached to the investments held in the Plan. For this purpose, You are appointed as Our agent and attorney to execute and deliver proxies and/or other instruments which We mail You in accordance with applicable laws.

22. Indemnity and Release

You, any beneficiary(ies) receiving Plan investments and/or proceeds under section 11, and Your Personal Representative(s) agree to indemnify Us and Our employees, nominees, agents and correspondents against, and to hold Us and them harmless from, all taxes (including without limitation any taxes required to be withheld by the Tax Laws on any amounts withdrawn from the Plan and any penalties and interest imposed in connection with such taxes), assessments, expenses, liabilities, claims and demands arising out of or due to the making of Contributions or the acquisition, holding or disposition of Plan investments or anything done under this Declaration, other than as the result of Our or their gross negligence or wilful misconduct. We, Our employees, nominees, agents and correspondents will not be responsible for any loss suffered by the Plan or by You or any beneficiary(ies) under the Plan as a result of the acquisition, disposition or retention of any Plan investment.

23. Governing Laws

This Declaration is governed by and must be interpreted according to the laws of the Canadian province or territory in which You reside. If You do not live in Canada, then the laws of the province or territory in which the Plan account is administered will govern. Headings in this Declaration are for ease of reference only. If any provision of the Act which is referred to in this Declaration is renumbered because of an amendment to the Act, then the reference in this Declaration is considered to be a reference to the renumbered provision.

24. Locked-In RRSP/Locked-In Retirement Account

If the Plan is a locked-in Plan, locked-in retirement account or other type of Plan regulated by Canadian pension legislation in addition to the Tax Laws, You must sign an amending agreement (the "Amending Agreement") when You sign the Application. Included in the Amending Agreement are terms which are required by the applicable pension legislation. Certain of the Amending Agreement's terms override certain terms of this Declaration (for example, You are restricted as to when and how You make withdrawals from this Plan), but only to the extent that such terms do not contravene the Act. For the purposes of obtaining a spousal waiver or consent or determining entitlement to any spousal death benefit under the pension legislation, "spouse", "common-law partner" or other similar term has the meaning given under the applicable pension legislation. You acknowledge that if there is a conflict at any time between the pension legislation and the Act, We will not contravene the Act or do anything which may result in a tax liability to Us.

Retirement Income Fund Declaration of Trust

1. Establishment of Fund

CIBC Trust Corporation, a trust company incorporated under the laws of Canada (the "Trustee"), agrees to act as trustee of the CIBC Mutual Funds Retirement Income Fund (the "Fund") established by the applicant named on the Fund Application (the "Application") in accordance with the terms set out below.

2. Definitions

In this Declaration of Trust:

Act means the Income Tax Act (Canada), as amended from time to time;

Agent means CIBC Securities Inc. and/or CIBC;

CIBC means Canadian Imperial Bank of Commerce;

Annuitant means the applicant named on the Application and, after the applicant's death, any Successor Annuitant (as defined in section 9 below);

Beneficiary has the meaning given in section 9 below;

Declaration means this Mutual Fund Retirement Income Fund Declaration of Trust;

Fund Assets means all investments and other property held in this Fund;

Personal Representative(s) means an executor, an administrator with or without a Will annexed, or an estate trustee;

Proceeds has the meaning given in section 10;

Retirement Income has the meaning given in the Act;

RRIF means a registered retirement income fund, as defined in the Act;

RRSP means a registered retirement savings plan, as defined in the Act;

Spouse includes a "Common-Law Partner", as defined in the Act and may include a "Civil Union Partner" as defined under Quebec law; however, "spouse" does not include any person who is not recognized as a Spouse or Common-Law Partner for the purposes of any provision of the Act respecting RRIFs;

Tax Laws means the Act and, if Your Application indicates that You reside in Canada, any applicable tax legislation of Your province or territory of residence as recorded in Your application;

We, Us and Our refer to the Trustee and/or the Agent, depending on the context;

You and Your mean the person who signed the Application, is the owner of the Fund and is referred to in the Act as the "annuitant" of the Fund and, after Your death, means Your Spouse if he or she becomes the successor annuitant of the Fund as described in section 8 below.

3. Registration

We will apply for registration of the Fund in accordance with the Tax Laws. The purpose of the Fund is to provide You with a Retirement Income in accordance with the Act.

4. Annuitant and Fund Account

We will maintain in Your name an account of all money and all investments held in the Fund and any interest credited to the Fund (collectively called the "Fund Account"). We will send You a Fund Account statement at least once a year. We will make such returns and file such reports as may be required from time to time under the Tax Laws.

5. Transfer of Property into the Fund

We will accept transfers into the Fund of cash and (if they are permitted investments under section 7) investments. Each transfer must be:

- An RRSP: From an RRSP registered in Your name;
- Another RRIF: From a RRIF registered in Your name;
- Transfer on Marriage Breakdown: From a RRIF or RRSP belonging to Your Spouse or former Spouse pursuant to a decree, order or judgment of a competent tribunal or a written separation agreement relating to a division of property between You and Your Spouse or former Spouse in settlement of rights arising out of Your marriage or common-law partnership, or after the breakdown of Your marriage or common-law partnership;
- Pension Plan Transfers: From a registered pension plan of which You are a "member" (as defined in subsection 147.1(1) of the Tax Act), a registered pension plan in accordance with subsection 147.3(5) or (7) of the Act, or a provincial pension plan in circumstances to which subsection 146(21) of the Act applies;
- Other Transfers: From You, but only to the extent that You are transferring in an amount described in sub-paragraph 60(1)(v) of the Tax Act (which permits transfers-in of RRSP premium refunds, commutation payments and RRIF "excess amounts") and/or investments that are permitted by section 7 from such other sources as the Tax Laws may permit from time to time.

The Fund Assets will be held by the Trustee in trust.

6. Minimum Transfers into the Fund

We may determine a required minimum amount for any transfer into the Fund. We may change that amount at any time.

7. Investments

You may invest cash and investments that have been transferred into the Fund, earnings on Fund investments and net proceeds on the sale of Fund investments in units of such CIBC Mutual Funds (the "Mutual Funds") and/or in such other investment options as the Agents may permit from time to time for the Fund. Cash transferred into the Fund will be invested in the CIBC Money Market Fund in the absence of satisfactory or complete investment instructions from You until such time as the Agent receives clear and complete instructions from You. Income earned by a Mutual Fund will be automatically reinvested without charge in additional Units of the same Mutual Fund unless You direct otherwise. Despite anything else in this Declaration, We may retain in cash any portion of a cash transfer-in as We may deem advisable in Our discretion for the payment of any fees referred to in section 16 below. You may appoint an agent to give Us investment instructions by providing Us with a duly executed power of attorney in a form acceptable to Us. You release Us from any claim or liability for acting on Your agent's instructions.

8. Payments

In each calendar year (the "Year"), We will make payments from the Fund to You as follows:

- Minimum Amount: In the Year in which You open the Fund, You do not have to take any payments if You do not want to. In subsequent Years, the Act requires that You receive payments which total at least the "Minimum Amount", as defined by the Act. The Minimum Amount varies each Year, depending on the Year in which the Fund was opened and Your age (or Your Spouse's age, if You elected before the first payment was made from the Fund that payments be based on Your Spouse's age). The value of the Fund Assets is, for the purpose of determining the Minimum Amount, the market value at the beginning of the Year, and for all other purposes, is the market value We determine from time to time in Our absolute discretion.
- Excess Payments: Instead of receiving the Minimum Amount each Year, You may direct Us to make payments which exceed the Minimum Amount by giving Us directions in a form acceptable to Us. Tax will be withheld from any payments that exceed the Minimum Amount, as required by the Tax Laws.

Subject to the Tax Laws, Your payments will be in the amounts and paid to You at the times You direct from time to time by written notice to Us in a form acceptable to Us. The final payment from this Fund will be equal to the value of the Fund Assets at the time of the payment (less all fees, costs and expenses payable under section 16 and any taxes required to be withheld).

You must specify the Fund investment(s) from which You want payments to be made. If You do not do so, if Your instructions are unclear or if the Fund investment(s) which you specified is(are) no longer held within your Fund at the time of a scheduled payment, for any reason (including, without limitation, because the Fund investments have been depleted by payments that have been made out of the Fund):

- For Minimum Amount payments, We may without notice to You sell such Fund investments as We in Our absolute discretion determine and apply the proceeds to make the payments; We are not responsible for any loss arising from such sale.
- For Excess Payments, We will not make any further excess payments until We receive clear instructions from You as to which Fund investment(s) is(are) to be used to fund the payments. We will not be liable for any losses caused by any delay in payments.

9. Designation of Successor Annuitant or Beneficiary

Where effective under applicable provincial or territorial law, You may name Your Spouse as Successor Annuitant or You may designate one or more persons (including Your Spouse, if You wish) to receive an amount or amounts out of the Fund after Your death. You cannot do both (unless You elected Your Spouse as Successor Annuitant or a designated beneficiary and that person dies or is no longer Your Spouse, in which case You may then designate one or more beneficiaries in accordance with this section or, in the alternative and if applicable, elect Your new Spouse as Successor Annuitant in accordance with this section).

- Successor Annuitant: You may name Your Spouse as "Successor Annuitant", meaning that he or she will receive RRIF payments under section 8 (with all necessary changes as the situation may require) after Your death, if Your Spouse survives You and is still Your Spouse at the time of Your death. If Your Spouse does not survive You, or if the person you name as Successor Annuitant survives You but is no longer Your Spouse at the time of Your death, the Fund will be paid to your estate unless you designated a Beneficiary in accordance with this section 9. If You do not make a Successor Annuitant election, We may agree to make such payments to Your Spouse after Your death, if Your Personal Representative(s) requests this. You may elect Your Spouse as Successor Annuitant, whether You are the original Annuitant or the Successor Annuitant of this Fund.
- Designated Beneficiary: Alternatively, You may designate one or more beneficiaries (the "Beneficiary") to receive the Fund Assets in accordance with section 10. You may designate a beneficiary whether You are the original Annuitant or the Successor Annuitant of this Fund.

To be valid, a Successor Annuitant election or beneficiary designation may only be made, changed or revoked by written instrument in form reasonably acceptable to Us (including, without limitation, by a Will or codicil), which instrument must comply with applicable provincial or territorial law; in addition, Your election or designation must adequately identify the Fund, be signed by You, and be received by Us at the address specified in section 14 before any payment is made under this section 9. If We receive more than one such election and/or designation, We will pay in accordance with the instrument with the most recent execution date, if the requirements set out in section 10 are met. An instrument may be effective for the purpose of this section even though, as a Will or codicil, it may be invalid or revoked.

If You designate only one Beneficiary, that person will be entitled to the entire Fund, as long as that person neither disclaims nor is deemed by any law to have disclaimed the right to receive a payment from the Fund. If You designate more than one Beneficiary, the Fund will be divided equally between or among (as applicable) those of Your designated Beneficiaries who survive You and who neither disclaim nor are deemed by any law to have disclaimed the right to receive a payment from the Fund. If You designate more than one Beneficiary but only one of the designated Beneficiaries survives You and neither disclaims nor is deemed by any law to have disclaimed the right to receive a payment from the Fund, that person will receive the entire Fund. If no Beneficiary is designated in accordance with this section, or if Your sole designated Beneficiary or all of Your designated Beneficiaries (as applicable) do(es) not survive You or disclaim(s) or is(are) deemed by any law to have disclaimed the right to receive a payment from the Fund, the Fund will be paid to Your Personal Representative.

10. Death of Annuitant

In the event of Your death, We will continue to hold the Fund invested until We receive all of the following:

- a) evidence satisfactory to Us of Your death.
- b) evidence satisfactory to Us as to who is (are) entitled in accordance with section 9 to receive the Fund. This evidence may include letters probate or similar documents indicating whether a Successor Annuitant election or beneficiary designation that We received in accordance with section 9 was not subsequently amended or revoked by Will or otherwise.
- c) such releases and other documents as We may reasonably require.
- d) if You did not make a Successor Annuitant election but designated one or more persons as Your beneficiaries, a written instruction from the Beneficiary or (if more than one) from all Beneficiaries to dispose of the Fund investments and distribute the proceeds in cash, to distribute the Fund investments in kind or to distribute a mixture of both.

If there is more than one Beneficiary entitled to the Fund in accordance with section 9 but all such Beneficiaries do not jointly instruct Us, within a reasonable time period after Your death (as assessed by Us in Our absolute discretion), whether Fund investments will be disposed of or distributed in kind and if the latter, which Fund investments will be sold and which will be distributed in kind and to whom, We will be entitled to exercise Our discretion to dispose of all, none, or only some of the Fund investments without notice and to divide the resultant proceeds and/or any remaining investments, as applicable, between/among the Beneficiaries as We see fit. However, on the distribution date, the value of the investments and/or proceeds (as applicable) distributed to each such Beneficiary must be equal.

Any taxes required by the Act to be withheld and any fees, costs and/or expenses referred to in section 16 will be deducted from any payments or other distributions under this section. In addition, We may delay (as applicable) payments to the Successor Annuitant or the disposition of Fund investments for such further period as We may deem appropriate, in Our absolute discretion, if We believe that the delay is necessary or advisable for the proper distribution of the Fund; We will not be liable for any loss caused by such delay.

If there is a dispute about who is legally authorized to apply for and accept receipt of Fund payments, proceeds and/or investments after Your death, We are entitled to apply to the courts for directions or to dispose of all Fund investments without notice and pay the Proceeds into court (whichever We choose, in Our absolute discretion). In either case, We will also be entitled to fully recover any legal costs incurred in this regard in accordance with section 16 below and We will not be liable for any loss incurred prior to or during the court proceedings or because of the disposition of any Fund investments prior to payment into court.

11. Delegation of Duties

Despite any other provisions in this Declaration, the Trustee acknowledges that it is vested with the ultimate responsibility for the administration of the Fund. Without detracting in any way from this responsibility, You acknowledge that the Trustee may delegate to others the performance of clerical, administrative, custodial and other duties relating to the Fund's operation. You authorize the Trustee to delegate to the Agent the performance of any of these duties. You acknowledge that the Agents pay the Trustee an ongoing fee for acting as trustee and that the Trustee and the Agents are entitled to reimburse themselves from the Fund Assets in accordance with section 16 for expenses and costs incurred in administering this Fund, including (without limitation), in the case of the Agents, in performing delegated duties.

12. Retirement of Trustee

The Trustee may retire as trustee of the Fund by sending You at least 90 days prior notice, as long as a replacement Trustee has been appointed in writing by the Agent and the replacement Trustee has accepted the appointment. The Trustee will transfer all Fund books, records and property to the replacement Trustee immediately upon retirement.

13. Transfers Out of the Fund

You may instruct Us to transfer out all or part of the Fund investments and/or proceeds (except for any portion that We must, in accordance with the Act, retain in order to ensure that You are paid the Minimum Amount for the year of transfer) together with all information necessary to continue the Fund, if applicable. To do so, You must give Us at least 90 days prior written notice of the transfer (or such lesser period as We may wish to accept in Our absolute discretion) and all other documents We may reasonably request. Such transfer will be made in the manner and to the person specified in Your notice, as long as the transfer complies with the Act, including (without limitation) paragraph 146.3(2)(e) and subsection 146.3(14) of the Act and any other applicable legislation (including provincial tax legislation and any applicable pension laws). If You request a partial transfer (whether it is to be cash or in kind), but We are of the view (in Our absolute discretion) that You have not clearly specified which investments are to be sold or transferred for this purpose, We will not process the transfer until We receive clear instructions in this regard; We will not be liable for any losses caused by such delay in processing, including but not limited to any change in investment value. No transfer will be made until all fees, costs and/or expenses referred to in section 16 below have been paid and any taxes required to be withheld have been deducted.

14. Notices

- a) Notice by You: Any notice, or instructions You give Us must be personally delivered or mailed (postage prepaid) to the Trustee c/o CIBC Securities Inc. at P.O. Box 51, Commerce Court Postal Station, Toronto, Ontario M5L 1A2, or at such other address as We may from time to time specify in writing. You may give a notice or instruction by fax only if, before the fax is sent, We have stated or agreed that it may be given by fax. Any notice or instruction will be considered to have been given to Us on the day it is actually delivered to or received by Us.
- b) Notice to You: Any notice, statement, receipt, or advice given by or on behalf of Us to You or any other person entitled to notice under the Declaration must be in writing and delivered personally or mailed (postage prepaid) to You or the other person at the address recorded in Our books with respect to the Fund. If it is mailed, it will be considered to have been received five days after mailing.

- c) Notice to the Trustee by Third Parties: While any legal notice or document issued by a third party in respect of the Fund will be effectively served on Us if served at the address in section 14(a) above, service may be accepted, at Our discretion, at any location of the Trustee, the Agent or any affiliate of CIBC. If We or any CIBC affiliate incurs any expenses in responding to any third party legal notice or document, We may charge those expenses to the Fund. We or the Agent may (but are not required to) notify You of the receipt of any legal notice or document before We or the Agent complies with it. We or any Agent may serve You with any legal notice or document by mailing it to You by ordinary mail in accordance with section 14(b). Any payment made by Us or any Agent to a third party claimant under any legal process is a discharge of the Trustee's trust obligations and of all obligations of the Agents with respect to the Mutual Funds to the extent of the amount paid, if the payment is made in good faith.

15. Amendments

We may amend this Declaration at Our discretion at any time by giving You written notice, which may be set out on or enclosed with a statement or other written communication sent to You or may be sent as a separate notice. The amendment(s) will be effective on the date set out in the notice; if no date is specified, the amendment(s) will be effective immediately. No amendment may result in the Fund not being acceptable as a RRIF under the Tax Laws.

16. Fees, Costs and Expenses

- a) We are entitled to receive, and charge against the Fund Account, the fees established from time to time for the Fund. If a Fund fee is increased or added, the Agent will mail You notice of the change at least 60 days before the change is effective.
- b) We are entitled to receive, and charge against the Fund Account, any costs and out-of-pocket expenses incurred by Us including (without limitation) any taxes or penalties payable in respect of services provided by Us in connection with the Fund. Without limiting the generality of the previous sentence, We are specifically entitled to recover any legal fees and expenses incurred by Us in connection with a dispute arising as a result of any Successor Annuitant election or beneficiary designation made by You either on a Fund document or otherwise or arising out of a third party demand made upon Your Fund. All such amounts will be charged against and deducted from the Fund Assets, unless You make other arrangements with Us.
- c) If any cash balance in the Fund Account is not enough to cover such fees, costs and expenses, then We may without notice to You sell such investment(s) at such price or prices as We in Our absolute discretion determine and apply the proceeds against such fees, costs and expenses. We are not responsible for any loss arising from the sale.

17. No Right to Assign

No payment from the Fund can be assigned in whole or in part.

18. No Collateral Benefit

No benefit or loan that is conditional in any way on the existence of this Fund may be extended to You or a person with whom You do not deal with at arm's length (other than those benefits which may be permitted from time to time under the Tax Laws).

19. Indemnity and Release

You, any beneficiary(ies) receiving Plan investments and/or proceeds under section 10, and Your Personal Representative(s) agree to indemnify Us and Our employees, nominees, agents and correspondents against, and to hold Us and them harmless from, all taxes (including without limitation any taxes required to be withheld by the Tax Laws on any amounts withdrawn from the Plan and any penalties and interest imposed in connection with such taxes), assessments, expenses, liabilities, claims and demands arising out of or due to the making of Contributions or the acquisition, holding or disposition of Plan investments or anything done under this Declaration, other than as the result of Our or their gross negligence or willful misconduct. We, Our employees, nominees, agents and correspondents will not be responsible for any loss suffered by the Plan or by You or any beneficiary(ies) under the Plan as a result of the acquisition, disposition or retention of any Plan investment.

20. Applicable Laws

This Declaration is governed by and must be interpreted according to the laws of the Canadian province or territory in which You reside. If You do not live in Canada, then the laws of the province or territory where the Fund Account is administered will govern. Headings in this Declaration are for ease of reference only. If any provision of the Act which is referred to in this Declaration is renumbered because of an amendment to the Act, then the reference in this Declaration is considered to be a reference to the renumbered provision.